

GUARANTY HOLDINGS OF CALIFORNIA, INC. v CATTANEO

20CV44713

PLAINTIFF'S MOTION TO STRIKE AND/OR TAX COSTS

This case involves landlord-tenant dispute over the condition of the residence after being surrendered back to the homeowner.

On April 25, 2025, the Court denied GHOC's motion to specially set the matter for trial before expiration of the 5-year statute under Code of Civil Procedure section 583.310. Now before the Court is a motion to tax costs brought by GHOC as to the Electronic Filing Fee Costs sought by Defendant Christopher Dufresne.

Dufresne seeks \$1,098.70 for electronic filing fee costs. However, as acknowledge by both parties, the use of electronic filing is "permitted" but not required by the Court. (See Code Civ. Proc. section 1033.5 (a)(14) [electronic filing fees are allowable as costs if the court requires or orders electronic filing].) Accordingly, Dufresne has filed a notice that he does not oppose the Motion and agrees to the striking of the electronic filing fees cost in the amount of \$1,098.70.

The motion is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.

**POKER FLAT PROPERTY OWNERS ASSOCIATION, INC.
v. ESTRADA et al**

22CV45807

**PLAINTIFF'S MOTION TO ENFORCE
SETTLEMENT AGREEMENT**

This case involves a breach of contract dispute. Now before the Court is a motion to enforce a settlement agreement filed by Plaintiff Poker Flat Property Owners Association, Inc ("Plaintiff") against Ronald Bruce Estrada, as Trustee of the Estrada Family Trust dated October 20, 1988 ("Defendant.")

Plaintiff filed the present action against Defendant on February 1, 2022, for the failure to adhere to the Declaration of Covenants, Conditions & Restrictions (CC&Rs) of the Poker Flat Property Owners Association. The Court held a settlement conference with the parties on August 5, 2024. The Court's minute order reflects that a settlement was reached pursuant to which Defendant would pay \$30,000.00 by February 5, 2024, and to maintain his property. (Aug. 5, 2024, Minute Order.) The Court accepted that agreement and further ordered that the failure to timely pay the agreed upon amount would result in a judgment against Defendant. Finally, the Court retained jurisdiction pursuant to Code Civ. Proc. section 664.6.

On January 9, 2025, the parties entered into a Settlement Agreement ("Agreement") (Declaration of Brian Shrigley ("Shrigley Decl.") ¶ 2, Ex. A.) Pursuant to the Agreement, Defendant agreed to pay \$30,000.00 to Plaintiff by February 5, 2025. (Ex. A.) Defendant was also obligated to pay \$2,848.29 in fees and costs. (*Ibid.*)

Plaintiff now moves to enforce the settlement agreement and for judgment against Defendant. It is unclear what efforts, if any, Plaintiff has undertaken to secure payment from Defendant, but from the records before the Court, it is undisputed that payment has not been made and the property has not been properly maintained.

Pursuant to Code Civ. Procedure section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms